

		had no intention of paying Cross-Complainant and did not payment Cross-Complainant, and that Cross-Complainant relied upon the representations due to this financial position and friendship with Cross-Defendant. Although the fraud cause of action could have been plead with greater specificity, the amount of specificity contained in the FAXC is just barely sufficient. Thus, the court will overrule the demurrer to the 2nd Cause of Action. Cross-Complainant shall give notice of this ruling.
2	Planet Beauty, Inc. vs. New Receiptco Opco LLC 30-2026- 01542120	<u>Demurrer</u> Defendant New Receiptco Opco, LLC dba Domtar's Demurrer to Plaintiff Planet Beauty, Inc.'s Complaint is taken OFF CALENDAR as moot. <u>Pending Action</u> Defendant New Receiptco Opco, LLC dba Domtar demurs to all causes of action of the Complaint filed by Plaintiff Planet Beauty, Inc. <u>Amending the Complaint Moots the Demurrer</u> A party may amend its complaint once without leave of the court at any time before the answer or demurrer is filed, or after a demurrer is filed but before the demurrer is heard if the amended complaint is filed and served no later than the date for filing an opposition to the demurrer. (Code Civ. Proc., § 472.) In addition, "[t]he filing of [an] amended complaint render[s] [a] demurrer moot since 'an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.'" (<i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054, quoting <i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875, 884.) When a plaintiff files an amended complaint in response to a demurrer, the demurrer should be taken off calendar since the

		amended complaint superseded the complaint to which the demurrer was directed. (<i>People ex rel. Strathmann v. Acacia Research Corp.</i> (2012) 210 Cal.App.4th 487, 505-506.) On June 30, 2026, after the instant demurrer was filed, Plaintiff filed the First Amended Complaint for Damages (FAC). The FAC renders this demurrer to the original Complaint moot. Therefore, the court will take the demurrer strike off calendar. Plaintiff shall give notice of this ruling.
3	Prado vs. General Motors LLC 30-2025-01459651	<u>Motion for Attorney's Fees and Costs</u> Plaintiff Hermelinda Prado's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in part and DENIED in part. Defendant General Motors, LLC is ORDERED to pay to Plaintiff Hermelinda Prado reasonable attorney's fees in the amount of \$22,044 and costs in the amount of \$766.59 within 30 days of service of the notice of ruling. Plaintiff Hermelinda Prado's Request for Judicial Notice in Support of Plaintiff's Motion for Attorneys' Fees is GRANTED as to Exhibit A. (See Evid. Code, § 452, subd. (d).) Plaintiff Hermelinda Prado's Supplemental Request for Judicial Notice ISO Reply ISO Motion for Attorneys' Fees, Costs, and Expenses is DENIED as to Exhibits 1-3. (See Evid. Code, § 452, subd. (d).) Courts do not consider evidence presented in a reply declaration except in extraordinary circumstances and where the other party has an opportunity to respond. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 ["The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers."]; <i>San Diego Watercrafts, Inc. v. Wells Fargo Bank</i> (2002) 102 Cal.App.4th 308, 310 [summary judgment reversed because trial court erred in considering evidence first submitted